



ENCAP INVESTMENTS L.P.

EMPLOYEE HANDBOOK

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I. INTRODUCTION

A. WELCOME TO ENCAP

This handbook is designed to acquaint you with EnCap Investments L.P. (“EnCap”), and contains important information about many policies and practices affecting your employment. For the purposes of this Employee Handbook, the term “Employee(s)” shall include the partners, officers, directors, and employees of EnCap. The Employee Handbook shall apply to and shall be observed by all Employees. Please read the Employee Handbook in its entirety. Employees will be asked to acknowledge that they have received, understand, and will abide by the policies and procedures contained in this Manual within the ComplianceAlpha platform upon commencement of employment and semiannually. This Employee Handbook supersedes any previous Employee Handbooks you may have received.

However, as times and situations change, we must all be flexible and change accordingly. Therefore, EnCap, in its sole discretion, may alter, revoke, suspend, or terminate the policies, practices, and benefits described in this Employee Handbook, in whole or in part, with or without prior notice. In addition, EnCap may, in its sole discretion, implement other policies that may not be included in this Employee Handbook. We will try to keep you informed of such policies and of changes as they occur, but we may not always be able to do so. You may check with EnCap management at any time to determine whether any policy is still current.

This Employee Handbook does not constitute nor is it intended as an express or implied contract of employment. Any written employment policies, notices, or bulletins are provided to Employees only to inform them of EnCap’s current practices with respect to their terms and conditions of employment. No written policy is a contract or other legal guarantee. No manager, supervisor, or Employee of EnCap other than the Managing Partners or Chief Financial Officer, in writing, has the authority to (i) promise or agree to any terms or conditions of employment different from those stated in any written policies, or (ii) enter into an agreement that alters an Employee’s at-will status with EnCap; again, any such agreement must be in writing.

This Employee Handbook cannot anticipate every situation about your employment, and it does not include all EnCap policies and procedures. It contains a summary of some of the more important policies and procedures. In all areas, EnCap intends to act in a manner consistent with applicable laws governing employment practices.

If you have any questions, please do not hesitate to ask the Chief Compliance Officer.

B. EMPLOYMENT AT WILL

Your employment is at will. This means that you may resign your employment at any time, with or without reason, and with or without advance notice. Likewise, EnCap may terminate your employment at any time, with or without reason, and with or without advance notice. Nothing in this Employee Handbook or in any notices, bulletins, or oral or written statements shall limit the right to terminate employment at will.

Any written employment policies, notices, or bulletins are provided to Employees only to inform them of EnCap's current practices with respect to their terms and conditions of employment. No written policy is a contract or other legal guarantee. No manager, supervisor, or Employee of EnCap other than the Managing Partners, in writing, has the authority to promise or agree to any terms or conditions of employment different from those stated in any written policies.

Likewise, no manager, supervisor, or Employee of EnCap, other than the Managing Partners, in writing, is authorized to (i) promise, agree to, or enter into any contract of employment with, or make a contractual commitment or guarantee of permanent or continuing employment to, any Employee, or (ii) promise or agree on behalf of EnCap to any limitation of an Employee's right to resign or EnCap's right to terminate employment at any time with or without reason, and with or without advance notice. Any such promise or agreement must be in writing and signed by a Managing Partner or the Chief Financial Officer.

If an Employee believes for whatever reason that (i) he or she cannot freely resign from employment with EnCap, or (ii) EnCap may not, because of some written or oral statement, representation, or promise made to the Employee, terminate his or her employment without reason or advance notice, he or she should immediately inform the Chief Financial Officer who will investigate the matter and clarify the parties' relationship. Failure to provide such notice constitutes the Employee's acknowledgment of his or her at-will employment with EnCap.

C. EMPLOYMENT CLASSIFICATIONS

EnCap Employees are classified as full-time, part-time or temporary, and exempt or non-exempt:

Initial Review Period

Each newly hired Employee will serve a 90-day initial review period. Employees who move into a new position during their employment due to promotion, transfer, or reassignment, and Employees who resume employment after a break in service, also may be required to complete a 90-day initial review period. The initial review period is used to train an Employee and evaluate his or her adjustment to work tasks and overall job responsibilities. During this time, EnCap and the Employee will evaluate if the Employee meets the demands of and is well-suited for the position. At EnCap's

discretion, an Employee may receive a performance review at the end of the 90-day initial review period that covers performance, skills, future job classifications, attendance, punctuality, and professional interpersonal skills. Successful completion of the initial review period may entitle an Employee to certain benefits, but does not alter an Employee's at-will employment status or guarantee employment for any period of time thereafter. During and following the initial review period, employment is at will and EnCap and the Employee are free to terminate the employment relationship for any reason or no reason, with or without advance notice.

Full-Time Employee

An Employee scheduled to work 30 hours or more per week on a regular, continuing basis is considered to be a full-time Employee. A full-time Employee generally is eligible for all employee benefits, subject to the terms of the applicable benefit plans.

Part-Time Employee

An Employee scheduled to work less than 30 hours per week on a regular, continuing basis is considered to be a part-time Employee. A part-time Employee is not eligible for employee benefits unless specified in applicable employee benefit plan documents or otherwise required by law. Should a part-time Employee be hired as a full-time Employee, he or she may be required to complete another initial review period commencing on the first day of full-time employment.

Temporary Employee

A person holding a job of limited duration arising out of a special assignment, abnormal workload, or emergency is considered to be a temporary employee. A temporary employee's job assignment, work schedule, and duration of the position will be determined on an individual basis. Normally, a temporary position will not exceed six (6) months. Temporary employees are not eligible for any of the benefits outlined in this Employee Handbook, unless specified in applicable benefit plan documents or otherwise required by law. Should a temporary employee be hired as a full-time Employee, he or she must complete an initial review period commencing on the first day the Employee begins working as a full-time Employee.

Exempt Employee

An Employee who is exempt from the minimum wage and overtime premium pay provisions of the Fair Labor Standards Act is considered to be an exempt Employee.

Non-Exempt Employee

An Employee who is subject to the minimum wage and overtime premium pay provisions of the Fair Labor Standards Act is considered to be a non-exempt Employee.

D. *EQUAL EMPLOYMENT OPPORTUNITY / REASONABLE ACCOMMODATION / HARASSMENT*

Non-Discrimination

EnCap is an equal opportunity employer and maintains a policy of non-discrimination with respect to all Employees and applicants for employment. All work-related decisions, such as recruitment, hiring, training, promotion, transfer, layoff, recall, compensation and benefits, discipline, and termination of employment, and educational, recreational, and social programs, are made and administered without regard to age, race, color, national origin, ancestry, religion, sex, sexual orientation, pregnancy (including childbirth, lactation, and related medical conditions), physical or mental disability, genetic information, veteran status, uniformed servicemember status, protected activity as defined by applicable law, or other category or characteristic protected by applicable federal, state, or local law or ordinance. Work-related decisions, subject to the legitimate business requirements of EnCap, are based solely on an individual's qualifications, merit, and performance. No person is authorized to act in a manner contrary to this commitment to equal employment opportunity.

Disability Accommodation

EnCap complies with the Americans with Disabilities Act (ADA), the Pregnant Workers Fairness Act (PWFA), the Pregnancy Discrimination Act, and all applicable state and local fair employment practices laws, and is committed to providing equal employment opportunities to qualified individuals with disabilities, including disabilities related to pregnancy, childbirth, and related conditions. Consistent with this commitment, EnCap will provide reasonable accommodation to otherwise qualified individuals where appropriate to allow the individual to perform the essential functions of the job, unless doing so would create an undue hardship on the business.

If you believe you require an accommodation because of your disability, it is your responsibility to notify Human Resources or your manager. You may be asked to include relevant information such as:

- A description of the proposed accommodation.
- The reason you need an accommodation.
- How the accommodation will help you perform the essential functions of your job.

After receiving your request, EnCap will engage in an interactive dialogue with you to determine the precise limitations of your disability and explore potential reasonable accommodations that could overcome those limitations. Where appropriate, we may need additional information from your medical provider. All medical information received by EnCap in connection with a request for accommodation will be treated as confidential.

EnCap encourages you to suggest specific reasonable accommodations that you believe would allow you to perform your job. However, EnCap is not required to make the specific accommodation requested by you and may provide an alternative effective accommodation, to the extent any reasonable accommodation can be made without imposing an undue hardship on EnCap.

If leave is provided as a reasonable accommodation, such leave may run concurrently with leave under the federal Family and Medical Leave Act and/or any other leave where permitted by state and federal law.

EnCap will not discriminate or retaliate against employees for requesting an accommodation. If you believe you have been subjected to discrimination or retaliation for requesting an accommodation, you should report it immediately to an EnCap Partner or Human Resources.

Accommodations for Nursing Mothers

EnCap will provide nursing mothers reasonable break time to express milk for their infant child(ren) for up to one year following the child's birth.

If you are nursing, you will be provided with a space, other than a restroom, that is shielded from view and free from intrusion from co-workers and the public.

Expressed milk can be stored in the refrigerators provided in the lactation room or in a personal cooler. Sufficiently mark or label your milk to avoid confusion for other Employees who may share the refrigerator.

Break time should, if possible, be taken concurrently with any other break time already provided. If you are nonexempt, clock out for any time taken that does not run concurrently with normally scheduled rest periods.

You must make reasonable efforts to not disrupt EnCap operations.

You are encouraged to discuss the length and frequency of these breaks with your Manager.

EnCap will not discriminate or retaliate against employees for taking lactation breaks as provided under this policy. If you are subjected to any conduct that you believe violates this policy, you should promptly contact Human Resources.

Non-Harassment

EnCap is fully committed to providing a workplace free from offensive or harassing conduct. To meet that commitment, EnCap depends on all personnel at every level of

EnCap to conform their conduct to its expectation of a harassment-free work environment, to report instances of non-compliance, and to cooperate with investigations of non-compliance with this policy.

Harassment on the basis of age, race (including hair texture and protective hairstyles), color, national origin, ancestry, religion, sex, sexual orientation, pregnancy (including childbirth, lactation, and related medical conditions), physical or mental disability, genetic information, veteran status, uniformed servicemember status, protected activity as defined by applicable law, or other category or characteristic protected by applicable federal, state, or local law or ordinance will not be permitted or condoned. Slurs, insults, or stereotypical comments related to those characteristics are wholly inappropriate, violate this policy, and also may violate federal, state, or local laws and ordinances.

Sexual harassment is a form of sex discrimination prohibited by this policy and the law. It includes unwelcome sexual advances, requests for sexual favors, and other verbal, visual, or physical conduct of a sexual nature or because of a person's sex when (i) submission to the conduct is made either explicitly or implicitly a term or condition of an individual's employment; (ii) submission to or rejection of the conduct by an individual is used as the basis or as a threatened basis for employment decisions affecting that individual; or (iii) the conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creates an intimidating, hostile, or offensive work environment, or otherwise adversely affects an individual's employment opportunities. It does not matter whether the harasser and the Employee to whom the harassment is directed are of the same or opposite sex.

Racial harassment is a form of race discrimination prohibited by this policy and the law. It includes racial jokes or remarks, insults relating to race (including hair texture and protective hairstyles), and race-related words or actions that substantially interfere with a person's work performance or create an intimidating, hostile, or offensive work environment.

It is not possible to catalogue all the specific types of conduct that might violate this policy or the law. Examples of conduct that is strictly prohibited by this policy, whether or not the behavior is directed at or offends other, include: Offensive or unwelcome sexual flirtations, advances, or propositions; demands for sexual favors; physical assaults or touching of a sexual nature; verbal abuse of a sexual, racial, or ethnic nature; racial or ethnic slurs or epithets; degrading or abusive sexual, racial, or ethnic stereotypes; graphic verbal commentaries about an individual's body or dress; sexually, racially, or ethnically degrading or hostile words used to describe an individual or his or her personal characteristics; or the workplace display, possession, distribution (such as by e-mail), or accessing (such as through the Internet) of racially or sexually explicit, graphic, suggestive, offensive, or demeaning jokes, photographs, images, books, magazines, or objects.

EnCap's policy prohibits all offensive or inappropriate conduct or behavior that is motivated by, or pertains to, a protected characteristic or status, regardless of whether it rises to the level of unlawful harassment under the law. In addition, Employees should be aware that certain types of conduct they may have intended to be inoffensive social exchanges may be perceived as offensive. Conduct that may be appropriate or inoffensive in certain purely social settings may be inappropriate or offensive in a work setting, and thus is prohibited. Employees should monitor their conduct to ensure that it is professional, respectful, and appropriate at all times for the workplace. Employees who exercise common sense and respect for others should not run afoul of this policy.

No person has the authority to condition employment or continued employment, advancement, or other terms and conditions of employment on the submission to sexual advances or acceptance of conduct that violates this policy, whether the promised or threatened conduct would favorably or adversely affect the person involved.

Reporting Procedure

Employees who believe they have experienced or witnessed any violation or possible violation of this policy (even if the Employee is not or does not perceive himself or herself to be victimized by the conduct) should report such conduct immediately to an EnCap Partner. Conduct by business partners, customers, vendors, and visitors that violates this anti-harassment policy should also be reported. If an Employee believes that a report of this nature has not been or cannot be addressed by an EnCap Partner for any reason, or if the conduct involves an EnCap Partner, he or she should contact the Chief Financial Officer.

No Employee who in good faith reports an alleged violation of this policy under this procedure or who in good faith participates in an investigation of a complaint will be retaliated against or subject to an adverse employment action because he or she made the complaint or participated in an investigation, even if the report cannot be confirmed. EnCap recognizes, however, that false accusations of harassment or other unlawful behavior can be damaging to an accused Employee and disruptive to EnCap's operations. Thus, knowingly making false accusations constitutes misconduct for which disciplinary action, up to and including termination of employment, may be imposed. Any Employee who believes that he or she has suffered an adverse employment action because of having made a report or participating in an investigation should immediately contact an EnCap Partner or the Chief Financial Officer.

**IMPORTANT NOTICE TO ALL EMPLOYEES:
EMPLOYEES WHO HAVE EXPERIENCED CONDUCT THEY
BELIEVE IS CONTRARY TO THIS POLICY HAVE AN OBLIGATION
TO TAKE IMMEDIATE ACTION UNDER THE REPORTING
PROCEDURE.**

Investigation of Reports

EnCap promptly and thoroughly investigates all complaints of harassment or other violations of this policy to determine whether improper conduct has occurred. All Employees are expected to cooperate fully with and assist EnCap in any investigation. The confidentiality of all complaints will be maintained to the extent possible while allowing EnCap to conduct a full and fair investigation. EnCap will take reasonable steps during its investigation to protect the privacy of, and minimize suspicion toward, all parties concerned; all Employees who participate in the investigation are expected to do the same.

Disciplinary Action

Any Employee found to have violated this policy will be subject to immediate and appropriate disciplinary action as determined by EnCap, up to and including termination of employment.

II. GETTING STARTED

A. APPLICATION

These policies apply to all Employees, at all EnCap premises, and at all other locations where an EnCap Employee is performing services on behalf of EnCap. All Employees are expected to comply with these policies in their interactions with EnCap's business partners, customers, vendors, and visitors. All business partners, customers, vendors, and visitors are expected to comply with these policies when on EnCap premises and in their interactions with EnCap personnel. "Premises" includes all work locations and all events sponsored by EnCap, an affiliate, or a service provider at other locations.

B. IMMIGRATION COMPLIANCE/VERIFICATION OF U.S. CITIZENSHIP AND/OR RIGHT TO WORK

In compliance with the Immigration Reform and Control Act of 1986, as amended, and applicable regulations, EnCap will hire only those individuals who are authorized to work in the United States. All individuals will be required to submit documentary proof of their identity and employment eligibility. Employees will also be required to complete and sign under oath U.S. Citizenship and Immigration Services Form I-9, which requires you to attest that you are eligible to work in the United States and that the documents you present are genuine.

If you are authorized to work in this country for a limited period of time, you will be required to submit proof of your continuing employment authorization before the expiration of that period in order to remain actively employed.

C. TIME-KEEPING/PAYDAYS/ DIRECT DEPOSIT

Timekeeping

Each Employee is responsible for accurately recording his or her time and submitting time records in a professional and timely manner. For payroll purposes, EnCap's workweek starts on Monday and ends on Sunday.

Non-exempt Employees must record their work hours by means of the online timekeeping portal or other method designated by EnCap. *All time, including overtime, worked by a non-exempt Employee must be documented through the portal.* A non-exempt Employee should accurately record the time he or she begins and ends work, as well as the beginning and ending time of each meal period. He or she also should record the beginning and ending time of any departure from work for personal reasons.

Exempt Employees report time on an exception basis (*e.g.*, reporting time away from work due to sick leave, holidays, vacation, or leave of absence).

Except where a non-exempt Employee's manager has specifically authorized overtime in advance, each Employee should report to work no earlier than five minutes before their work schedule begins and leave no later than five minutes after it ends.

Each Employee is responsible for making sure his or her time is recorded accurately. Each Employee also must record his or her own time. It is a violation of EnCap policy to alter, falsify or tamper with time records, or to record the time of another Employee.

Any violation of this policy may result in disciplinary action, up to and including termination of employment.

You should carefully review your paycheck for accuracy promptly upon receipt. If you find any errors in or have any questions about your pay, contact Human Resources immediately. All such reports will be investigated and, if warranted, corrective action will be taken including reimbursement of any amounts that were improperly deducted. No adverse action will be taken against an Employee who makes a good faith report of a possible error in his or her paycheck or who cooperates in an investigation of any such report.

If you lose your paycheck, please notify Human Resources immediately.

Paydays

All Employees are paid semi-monthly on the 15th and last day of the month.

In the event that a regularly scheduled payday falls on a day off (e.g., a weekend or holiday), Employees will receive pay on the last day of work before the regularly scheduled payday.

EnCap does not provide any payroll advances or extend credit to Employees.

Direct Deposit

Employees will receive compensation by direct deposit to any bank that is a member of the Automated Clearing House Association of Banks. Any Employee without access to such a bank account or who wishes to receive their pay by another means should contact Human Resources.

EnCap reserves the right, to the extent permitted by applicable law, to reverse any direct deposit amounts erroneously deposited into your account.

D. ATTENDANCE AND PUNCTUALITY

In General

Regular attendance and punctuality are essential job functions for all positions at EnCap. As a result, Employees are expected to report to work on time each day and to avoid unnecessary absences. Each Employee must discuss any circumstances that may affect his or her attendance and punctuality with his or her manager. EnCap expects all regular full-time Employees to work at least 40 hours each workweek and all regular part-time Employees to work no more than 30 hours each workweek, unless leave or an alternative schedule is approved by the appropriate manager in accordance with applicable EnCap policy.

Telecommuting

Telecommuting is defined as regularly working a full or partial workday from home or some other alternate work site.

EnCap will make telecommuting available to Employees when it benefits organizational and departmental needs. This option may not be available in some job classifications. Each department manager will determine, in his or her discretion, the positions within the department, if any, that may be suitable for telecommuting as well as the appropriate arrangements.

If you meet eligibility requirements for telecommuting, you must make a request to your Manager for departmental approval. If you are granted a telecommuting arrangement, you will be subject to the same performance standards as prior to telecommuting. Telecommuting work areas may be evaluated to ensure that appropriate safety standards are met. EnCap may reverse a decision to permit telecommuting or may modify a telecommuting arrangement at any time in its sole discretion, due to EnCap's needs, an Employee's performance, or any other reason. Employees who are permitted to telecommute must accurately record all working time in accordance with the Time-Keeping policy in this Handbook.

Telecommuting may be a reasonable accommodation pursuant to the Disability Accommodation policy in this Handbook; consult with your Manager and Human Resources if you are requesting telecommuting as a reasonable accommodation.

Notification Requirements

If an Employee expects to be absent or tardy for any reason, he or she must personally notify (unless an emergency prevents personal notification) his or her manager as soon as possible but no less than two hours before the beginning of the scheduled shift. Messages generally are not acceptable. The Employee should report why he or she is absent and when he or she will return to work. If an Employee must leave work for any

reason before the end of the scheduled workday, he or she must personally give advance notice to the appropriate manager.

Health Care Provider Certification Requirements

EnCap reserves the right to request a health care provider's certification in cases where an Employee is absent due to the Employee's illness or injury.

Job Abandonment

An Employee's failure to report to work for three consecutive days without contacting his or her manager will be considered job abandonment, except as otherwise required by law.

Discipline

Excessive absenteeism or tardiness for any reason may result in disciplinary action, up to and including termination of employment.

E. HOURS OF WORK/OVERTIME/DEDUCTIONS FROM PAY

Hours of Work

EnCap's standard full-time workweek begins on Monday and ends on Sunday. Various factors, such as workloads, operational efficiency, staffing needs and EnCap's working schedules may require variations in an Employee's daily starting and ending times. Your manager will give the beginning and ending times of your standard work schedule to you.

Overtime

Every Employee should attempt to accomplish work requirements within his or her scheduled working hours. However, EnCap reserves the right to schedule overtime work as necessary to meet its business requirements. Any overtime work performed by a non-exempt Employee must be specifically authorized in advance by the Employee's manager. Overtime work, when specifically authorized, is a mandatory job requirement. A non-exempt Employee who performs unauthorized overtime work may be subject to disciplinary action, up to and including termination of employment.

Subject to applicable law, non-exempt Employees receive time and one-half of their regular hourly rates for all hours worked in excess of 40 in any single workweek. "Hours worked" means time actually worked. It does not include time away from work due to vacation, sickness, holiday, personal leave, or other reasons even when the Employee receives pay for the hours not actually worked. Non-exempt Employees shall record all time worked, including time worked over their normal schedule, through the portal or other method designated by EnCap, at the time it actually occurs.

Exempt Employees are expected to work as much of each workday as is necessary to complete their job responsibilities. Exempt Employees are not eligible for overtime pay.

Deductions from Pay

EnCap is required by law to make certain deductions from an Employee's pay. For example, deductions are made for federal income tax, state and local income tax (if applicable), FICA (Social Security and Medicare), and court-ordered obligations. Other deductions from an Employee's paycheck are made only with the Employee's authorization; for example, deductions may be made from an Employee's paycheck for benefit plan insurance premiums or for voluntary retirement or savings plan contributions.

Exempt Employees are paid on a salary basis, which means that their pre-determined salaries generally are not subject to deductions due to quality or quantity of work performed. For any workweek in which an exempt Employee performs work, the Employee's pay generally will not be reduced for:

- partial-day absences for personal reasons, sickness, or disability. (Please note that a reduction may be made from an Employee's accrued vacation or sick leave for partial-day absences due to personal reasons, sickness, or disability);
- absences mandated by EnCap; or
- absences for jury duty, attendance as a witness, or military leave. (Please note that deductions from salary may be made to offset witness fees or military pay received by the Employee).

An exempt Employee's pay may be reduced for the following reasons (although an Employee may be compensated for certain absences through the use of paid leave):

- one or more full day absences for personal reasons or because of sickness or disability;
- penalties or suspensions for violations of written safety rules of major significance;
- disciplinary suspensions of one or more full days for violation of written workplace conduct rules (but not for performance or attendance problems); and
- those days in the first and last weeks of employment the Employee does not work.

Procedure for Reporting Errors in the Payment of Wages

Improper deductions are prohibited. On occasion, however, inadvertent errors may occur. Employees should carefully review their paychecks for accuracy promptly upon

receipt. An Employee who has any questions about his or her pay; who believes that improper deductions have been taken; or who believes that his or her pay does not accurately reflect hours worked, should immediately contact Human Resources. When possible, the Employee should provide the date of the deduction and any supporting documentation, such as the Employee's pay stub. All such reports will be investigated and, if warranted, corrective action will be taken including reimbursement of any amounts that were improperly deducted. No adverse action will be taken against an Employee who makes a good faith report of a possible error in his or her paycheck or who cooperates in an investigation of any such report.

III. PERSONNEL POLICIES

A. POLICY AGAINST WEAPONS AND VIOLENCE IN THE WORKPLACE

EnCap strictly prohibits all forms of workplace violence. EnCap believes Employees must display common sense, good judgment and a high regard for the rights and interests of others if we are to provide a safe and productive work environment. Accordingly, Employees are required to adhere to essential standards of personal conduct at all times.

If an Employee shows any sort of violent behavior toward themselves, customers, visitors, vendors, contractors, other Employees, members of management, or any other third parties, he or she will be subject to appropriate discipline and may not be permitted to continue working for EnCap. EnCap simply does not tolerate any behavior that puts others at risk of harm. Employees should immediately report all violence or potentially violent activity or behavior to the appropriate manager, an EnCap Partner or the Chief Financial Officer.

EnCap prohibits the presence or possession of firearms, explosives, ammunition, or other weapons (which includes any object capable of causing serious bodily injury, including small pocket knives) on its premises, other than by public safety personnel and authorized security personnel. This policy applies regardless of whether an Employee is licensed by a governmental entity to carry a concealed handgun. For purposes of this policy, “premises” means any location where the Employee performs work for EnCap or participates in a EnCap-sponsored event, parking areas provided or designated by EnCap (except where local law authorizes the lawful possession of firearms or ammunition in an Employee’s privately-owned, locked vehicle), offices, any EnCap-provided vehicle used in the course and scope of the Employee’s employment, and any personal belongings on or in any of the above. All Employees must also comply with any workplace and weapons policies and/or programs applicable to third-party or off-site job sites.

For Texas Employees Only:

- Pursuant to Section 30.06, Penal Code (trespass by license holder with a concealed handgun), a person licensed under Subchapter H, Chapter 411, Government Code (handgun licensing law), may not enter company property with a concealed handgun.
- Pursuant to Section 30.07, Penal Code (trespass by license holder with an openly carried handgun), a person licensed under Subchapter H, Chapter 411, Government Code (handgun licensing law), may not enter company property with a handgun that is carried openly.
- Pursuant to Section 30.05, Penal Code (criminal Trespass) a person may not enter company property with a firearm.

- An Employee who holds a license to carry a handgun, who otherwise lawfully possesses a firearm, or who lawfully possesses ammunition may transport or store a firearm or ammunition the Employee is authorized by law to possess in a locked, privately owned motor vehicle in a parking lot, parking garage, or other parking area EnCap provides for employees.

In all cases, determinations as to the appropriate level of discipline are reserved by and remain within the sole discretion of EnCap regardless of whether the behavior constitutes violence.

Actions do not need to be aimed directly towards someone or something to be considered a violation of this policy jeopardizing the safety and productivity of co-workers, customers, vendors, visitors, and others.

The following are additional, non-exclusive examples of violations of this policy:

- Any act or omission which threatens, coerces or endangers the safety of co-workers, customers or self.
- Fighting, threatening or provoking a fight while on EnCap time, property, and/or job site.
- Destruction, damage or misuse of EnCap property, property of co-workers, customers, or vendors.
- Making a threat of violence while on EnCap time, property, and/or job site.

All incidents involving violence in the workplace must immediately be reported to your manager, an EnCap Partner, or the Chief Financial Officer. In addition, all EnCap personnel are responsible for immediately notifying their manager, an EnCap Partner, or the Chief Financial Officer of any threats that they have witnessed, received, or have been told that another person has witnessed or received. Even without an actual threat, personnel should also immediately report any behavior they have witnessed in the EnCap workplace or during working hours which they regard as threatening or violent. Employees must immediately make this report regardless of the relationship between the individual who made the threat or displayed threatening behavior and the person or persons who were threatened or were the focus of the threatening behavior.

All individuals who obtain a protective or restraining order which lists EnCap locations, directly or indirectly, as being protected areas, must provide to their manager, an EnCap Partner, or the Chief Financial Officer a copy of any temporary protective or restraining order which is granted, and a copy of any protective or restraining order which is made permanent. EnCap understands the sensitivity of the information requested and will maintain the highest degree of confidentiality possible. EnCap will share information only on an as needed basis.

Any violation of this policy may result in disciplinary action, up to and including termination of employment.

B. POLICY AGAINST SUBSTANCE ABUSE

It is essential that all Employees be alert and in full possession of their faculties when working. This Policy Against Substance Abuse is necessary to protect the safety of our workforce, our workplace, and the public. Using illicit drugs or alcohol can cause permanent injury or death.

The purpose of this Policy Against Substance Abuse is to prevent accidents and injuries in EnCap's operations that result from Employees using illicit drugs, controlled substances, or alcohol, and to maintain high standards of conduct and efficiency. Accordingly, no Employee may report to work or remain on duty while using, being under the influence of, or impaired by alcohol or an illegal drug, intoxicant, or controlled substance. No Employee may possess, sell or distribute alcohol or an illegal drug, intoxicant, or controlled substance while on EnCap property or on EnCap time. Drinking alcoholic beverages or use of other illegal drugs, intoxicants, or controlled substances during working hours, during breaks, or during lunch is prohibited.

To ensure compliance with EnCap's prohibition of drug and alcohol use in the workplace, EnCap, in its sole discretion, may conduct drug and alcohol testing of Employees (i) when it reasonably suspects that the Employee is impaired, under the influence of, or in possession of illegal drugs or alcohol, and (ii) following a work-related accident that results or could have resulted in any personal injury or property damage. An Employee must submit to a drug or alcohol test immediately upon EnCap's request or in a timeframe suitable to EnCap in its sole discretion. Refusal to submit to testing or to sign the consent form is misconduct and is grounds for discipline, up to and including termination of employment. A confirmed positive test result on any required drug or alcohol test is misconduct and is grounds for discipline, up to and including termination of employment. For purposes of this policy, "positive test result" means (i) with respect to drugs, a test that results in the detectable level of any illegal drugs, any drug that has not been legally obtained, or any drug being used in a manner, for a purpose, or by a person other than for which or to whom it was prescribed or manufactured, and (ii) with respect to alcohol, a test that results in any alcohol concentration in the blood or urine of 0.02 or greater.

The use of prescription drugs and/or over-the-counter drugs may also affect Employees' job performance and seriously impair Employees' ability to perform their job duties. Any Employee who is using prescription or over-the-counter drugs that may impair his or her ability to safely perform the job or may affect the safety of others must submit a physician's statement to his or her manager that the prescription drug will not affect job safety. The Employee is not required to identify the medication or underlying illness. Various federal, state and local laws protect the rights of individuals with disabilities and others with regard to the confidentiality of medical information, medical treatment, and the use of prescription drugs and substances taken under medical supervision. Nothing contained in this policy is intended to interfere with or to violate individual rights under these laws.

To prevent alcohol or an illegal drug, intoxicant, or controlled substance from being brought on to EnCap premises, EnCap reserves the right to search its property and premises and to inspect any work station, desk, package, purse, briefcase, vehicle, or other personal belongings brought onto EnCap premises, in connection with the investigation of any rule violation. EnCap may conduct its searches with or without prior notice. Accordingly, Employees have no expectation of privacy while on EnCap premises. Employees must cooperate in all investigations of suspected rule violations or in the maintenance of a safe workplace. Failure to consent to such an inspection will lead to appropriate discipline, up to and including termination of employment.

Notwithstanding the foregoing policy, EnCap may, from time to time, authorize alcoholic beverages at sanctioned company functions at designated sites. In those situations, an Employee may consume a moderate amount of alcohol, provided that the Employee's conduct and demeanor remain businesslike and professional at all times, and provided further that the Employee does not thereafter drive or otherwise engage in any hazardous activity if the alcohol consumed would impair or affect the Employee's ability to perform those activities.

Any violation of this policy may result in disciplinary action, up to and including termination of employment.

C. CONDUCT AND WORK PERFORMANCE

EnCap expects its Employees to perform the duties assigned to them promptly and satisfactorily, to follow rules of conduct that will protect the interests and safety of all personnel, to adhere to the highest standards of personal and business-like conduct in their work on behalf of EnCap and in their private conduct that might reflect on their ability to serve properly and effectively as a representative of EnCap.

It is not possible to list all the forms of behavior that are considered unacceptable in the workplace. However, to ensure that Employees are aware of their responsibilities to EnCap, its customers, vendors, contractors, visitors, and Employees, the following list sets forth, by way of example only and without limitation, conduct that may result in disciplinary action, up to and including termination of employment:

- Any conduct contrary to the Equal Employment Opportunity/Reasonable Accommodation/Harassment Policy.
- Falsifying information on any EnCap employment applications and/or documents submitted in connection with an application for employment.
- Falsifying information on any of EnCap records or reports, including but not limited to time records, expense reports, requests for reimbursement, forms, production records, or records related to Employee absence or leave.
- Knowingly making false reports of violations of any EnCap policy.

- Removing, using, altering, or destroying, without authorization, property, records, or other materials of EnCap or an EnCap Employee, client, contractor, vendor, or visitor.
- Dishonest or fraudulent conduct, including but not limited to fraud, theft, or misappropriation of or unauthorized removal of funds or property owned by EnCap, an Employee, a client, a contractor, a vendor, or a visitor.
- Conviction of a criminal offense involving moral turpitude or conviction of any felony.
- Fighting, assaulting, threatening, intimidating, or coercing any visitor, customer, vendor, contractor, or another EnCap Employee.
- Disorderly conduct, such as “horseplay” or practical jokes, that may endanger EnCap’s operations, jeopardize the well-being of any Employee, client, contractor, vendor, or visitor of EnCap, or cause damage to property.
- Abuse, disrespect, or inconsiderate treatment of any customer, visitor, vendor, Employee or contractor.
- Insubordination, the refusal to comply with instructions, or the failure or refusal to perform assigned duties.
- Inability or unwillingness to cooperate with other Employees when performing assigned tasks or any interference with the performance of job duties by fellow Employees.
- Unsatisfactory job performance.
- Violating any safety, health, or security rule, practice, or procedure of EnCap, or engaging in conduct which creates a safety hazard.
- Unexcused or excessive absenteeism or tardiness.
- Engaging in unlawful conduct off the work premises or during non-working hours, which affects an Employee’s relationship to work, fellow Employees, managers, or EnCap products, property, reputation or goodwill in the community.
- Leaving work before the end of the workday without the authorization of your manager.
- Smoking in prohibited areas.
- Violation of EnCap’s Policy Against Weapons and Violence in the Workplace, including, without limitation, carrying or concealing any weapon onto EnCap premises or to any worksite.
- Violation of EnCap’s Policy Against Substance Abuse, including without limitation using, being under the influence of, or being impaired by alcohol or any controlled substance or drug, or possessing of alcohol, drugs, or controlled

substances while performing services for EnCap, during working time, or while on call.

- Possession of dangerous, unauthorized, or illegal items in the workplace, including but not limited to contraband, weapons, firearms, explosives, illegal drugs, drug paraphernalia, and stolen property.
- Conduct which in the sole discretion of management is deemed to violate EnCap's Conflicts of Interest Policy.
- Abusing of any leave policy.
- Abuse of EnCap's electronic information or communications systems.
- Unauthorized or inappropriate disclosure or removal of EnCap's confidential or proprietary information.
- Secretly recording Employees or sensitive EnCap property (including confidential information) during working time through the use of hidden recorders, cameras, telephones, smartphones, video tapes, audio tapes, or otherwise, without the advance written approval of the Chief Financial Officer.
- Committing a fraudulent act or a breach of trust in any circumstances.
- Any conduct that conflicts with EnCap's Code of Professional Conduct, including the solicitation of gifts or acceptance of payments or kickbacks, either directly or indirectly, from persons doing business with EnCap.
- Soliciting or accepting unauthorized gratuities from EnCap's vendors or customers.
- Gambling of any kind on EnCap's property.
- Maliciously making false statements about EnCap, its Employees, its services, or its customers, visitors, vendors, or contractors.
- Willful destruction, negligence, misuse, or other improper conduct leading to damage of equipment, facilities, or other property owned by or on the premises of EnCap.
- Missing mandatory meetings, including, without limit, mandatory training sessions.
- Inattention to duties, wasting time, sleeping on the job, or unauthorized or excessive personal use of the telephone or information systems.
- Failing to promptly report any incident or on-the-job injury or practices that could result in personal injury or damage to EnCap's or a customer's, visitor's, vendor's, or contractor's property.
- Failure to adhere to the rules of operation and conduct established by EnCap, including but not limited to those practices and procedures set forth in this Employee Handbook, and any other written employment policies.

- Violation of any other policy or practice, whether or not mentioned in this Handbook, that results in actions or omissions that are inconsistent with the ordinary and reasonable rules of conduct necessary for the welfare of EnCap, its Employees, customers, visitors, vendors, and contractors.

This list should not be viewed as being all-inclusive. In addition to conduct listed above that EnCap considers inappropriate, certain actions and behavior of Employees could result in discipline, up to and including termination of employment, in EnCap's sole discretion. Nothing in this policy is intended to infringe upon employees' exercise of their rights under Section 7 of the National Labor Relations Act.

Should an Employee's performance, work habits, overall attitude, conduct or demeanor become unsatisfactory based on violations either of the above or of any other EnCap policies, practices, rules, guidelines, or regulations, the Employee will be subject to disciplinary action, up to and including termination.

EnCap does not have a formal progressive discipline policy requiring a set number of warnings or counseling sessions. Instead, each case is considered on its own facts. It is EnCap's intention to follow a constructive approach to disciplinary matters and performance related problems. Where appropriate, EnCap will endeavor to counsel an Employee to correct any disciplinary or performance problems. In certain circumstances, however, EnCap may find it necessary to impose immediate disciplinary action up to and including termination of employment, without prior notice or counseling.

The above statement regarding conduct and work performance does not alter or limit your employment at will status with EnCap. Your employment may be terminated at any time for any reason, with or without cause or advance notice.

D. PERSONAL RELATIONS AT WORK

Personal or intimate relationships between Employees may adversely affect performance, interfere with operations, decrease morale and give rise to perceptions of favoritism. EnCap thus expects all Employees to use common sense and sound judgment in relationships with co-workers, including not allowing such relationships to adversely affect performance or the work environment.

A supervisor/manager is not permitted to directly or indirectly supervise an Employee with whom they have a personal or intimate relationship. Concerns regarding favoritism should be discussed with a Managing Partner or the Chief Financial Officer.

E. CELLULAR TELEPHONE USE

Prohibition On Cellular Telephone Use While Driving

In today's business world, cellular telephones have become an important and highly efficient means of transacting business. Research and experience show, however, that the use of cellular telephones while driving may be unsafe and may increase the risk of accident. Accordingly, although EnCap encourages and supports the use of cellular telephones by Employees who must conduct business outside of the office, it strictly prohibits cellular telephone usage (including text messaging) while driving a motor vehicle unless a hands-free device is used. No Employee may use a cellular telephone, whether or not the telephone was issued by EnCap, to place or receive work-related telephone calls or text messages while operating any motor vehicle unless a hands-free device is used. Except in the event of an emergency, telephone calls may be conducted from a motor vehicle without a hands-free device only if the vehicle has been pulled off the road, removed from traffic, and come to a complete stop.

F. OPEN DOOR POLICY

EnCap maintains an open-door policy to assist with Employee concerns. EnCap is available to help you resolve misunderstandings. This Handbook contains specific protocols for reporting certain behavior (e.g., concerns related to possible violations of the Equal Employment Opportunity / Reasonable Accommodation / Harassment policy should be addressed as set out in that policy). **For any work-related problems including violations of policies, to the extent the reporting protocol is not otherwise addressed in this Handbook, Employees should first discuss the matter with his/her manager. If you do not feel comfortable discussing such concerns with your manager, please discuss your concerns with the Chief Financial Officer, Chief Compliance Officer, or a Managing Partner. As an alternative means of communication, an employee may also report such matters to the following email address: employeehotline@encapinvestments.com, which will be received by these individuals.**

EnCap will give all Employee problems and concerns full and fair consideration. If informal discussion does not resolve the problem, EnCap will initiate an appropriate investigation if necessary. All Employees are expected to cooperate with and assist EnCap in any investigation. The confidentiality of all problems will be maintained to the extent possible while allowing EnCap to conduct a full and fair investigation. EnCap will take all reasonable steps during its investigation to protect the privacy of, and minimize suspicion toward, all parties concerned.

Although EnCap provides you with this opportunity to communicate your concerns, not every complaint can be resolved to your satisfaction. Nevertheless, EnCap believes that open communication is essential to a successful work environment.

G. SAFETY AND ACCIDENT PREVENTION

Safety is a vital concern of EnCap. Each Employee is responsible for and plays a vital role in ensuring the continued safety of their workplace.

EnCap expects its Employees to share the responsibility for maintaining that environment. Employees are requested to take all necessary and reasonable actions to keep EnCap's premises safe, including the observance of all safety rules and regulations promulgated by the EnCap or required by law.

EnCap maintains workers' compensation insurance for any injuries or illnesses suffered by Employees in the course and scope of their employment. An Employee must immediately report to his or her manager, Human Resources or the Chief Financial Officer any injury sustained by the Employee while on duty or by a visitor on EnCap's premises, no matter how minor the injury may seem. The failure to promptly report an on-the-job injury may result in disciplinary action, up to and including termination of employment. No Employee who sustains an on-the-job injury will be subject to an adverse employment action or otherwise be discriminated against for having reported the injury.

We need your help in promoting safety and the prevention of accidents by observing the following common sense rules:

- Learn your job and how to be safe in the workplace.
- Learn the location of fire alarm boxes, extinguishers, and your duties in case of fire.
- Immediately notify your manager or the Chief Financial Officer in writing about any unsafe or unhealthful working conditions, including, without limitation, the following:
 - Wet or slippery floors
 - Littered or unsafe areas at work
 - Equipment left in halls or walkways
 - Exposed or unsafe electrical wiring
 - Careless handling of equipment
 - Defective equipment
- Do not operate electrical equipment with wet hands.
- Immediately report all accidents to your manager or the Chief Financial Officer.
- Use proper lifting procedures and ask for help when needed.
- Wear safety glasses and protective clothing or equipment when needed.
- Handle hazardous chemicals with proper precautions.

- Comply with all applicable occupational safety and health laws.
- Do not hesitate to report any and all safety concerns in detail. No Employee will knowingly be required to work in unsafe conditions.

H. PERSONNEL FILES/MEDICAL RECORDS/EMPLOYEE INFORMATION

Personnel Files

EnCap may maintain a personnel file for an Employee, which may contain pertinent employment information, including attendance records, performance appraisals, and commendatory and disciplinary memoranda.

Medical Files

EnCap will maintain any medical information about an Employee, as well as any medical documentation voluntarily disclosed by an Employee, in a confidential medical file separate from the Employee's personnel file.

Access to Files

Personnel and medical files are the confidential records and property of EnCap, maintained solely for internal personnel administration purposes. Except for use by authorized members of management, personnel and medical files are generally not available for review by Employees or outside parties. If an Employee believes that any information in his or her personnel or medical file is incorrect, the Employee should contact Human Resources.

Employee Information

Employees are responsible for providing EnCap with up-to-date personnel data, such as name, address, home and emergency contact telephone numbers, and information necessary for Employee benefits administration. Should any Employee information change, the Employee should submit the updated information to Human Resources. Employees should contact Human Resources to update Employee information needed in connection with Employee benefit plans.

If an Employee would like to change his or her tax filing status, he or she should contact Human Resources.

I. RELEASE OF INFORMATION CONCERNING PAST AND CURRENT EMPLOYEES

Unless otherwise required by law, EnCap will not release information concerning its Employees to prospective employers of those Employees except to confirm employment or to verify information already provided by the Employee.

J. *SOLICITATION AND DISTRIBUTION*

Non-Employees

Persons who are not Employees of EnCap are not permitted on EnCap's premises or in its facilities or offices to solicit or to distribute articles or printed matter to EnCap's Employees and visitors, or to post printed matter anywhere on EnCap's premises.

Employees

To provide surroundings conducive to maximum efficiency and to avoid disruption, solicitation activities and distribution and posting of written or printed matter, other than documents being used in or otherwise related to EnCap's business, are not permitted in EnCap's working areas. "Working areas" include any portion of EnCap's premises where Employees customarily perform or are actually performing their regularly assigned duties or any other activities in furtherance of EnCap's business, but excludes, for example, cafeterias, break rooms, and parking lots.

Each Employee's work deserves his or her full attention. Therefore, solicitation and distribution activities of any kind, including electronic mail, unrelated to EnCap's business are not permitted during the working time of either the person engaging in such activities or the recipient. "Working time" includes all working hours during which an Employee is on duty, but does not include meal periods.

If an Employee has a message of interest to the workplace, he or she may submit it to the Chief Financial Officer. All approved messages will be posted or distributed.

The foregoing rules do not apply to solicitation or distribution of materials arranged by EnCap in connection with its business. With respect to any such authorized solicitations or distributions, the Employee alone makes the decision to contribute or participate.

This policy is not intended and should not be construed to prohibit Employees from communications or other activities protected by applicable state or federal law, including the National Labor Relations Act.

Discipline

Violation of this policy may result in appropriate disciplinary action, up to and including termination of employment.

IV. BENEFITS

This section briefly summarizes several benefits, including certain health and retirement benefits, for eligible Employees. The descriptions of benefits contained in this Employee Handbook are informational summaries only; in the event of any inconsistency or conflict between the summaries contained in this Employee Handbook and any Plan Document (including summary plan descriptions) applicable to specific plans, the Plan Document will control. Please be sure to review the summary plan descriptions and/or group insurance booklets in connection with the various insurance policies described below to learn the details of each policy. If you have any questions about any of the benefits described below, please contact Human Resources.

EnCap reserves the right to modify, amend, or terminate its health, retirement, and other benefits as they apply to all current, former, and retired Employees as well as any other benefits. Eligibility to participate in any benefit plan depends upon the specific requirements and terms of each written benefit plan and is not guaranteed by this Handbook or otherwise.

A. GROUP MEDICAL, DENTAL, AND VISION INSURANCE

EnCap has arranged for certain group insurance plans including medical, dental and vision coverage for eligible full-time Employees who have completed applicable waiting periods (a summary of these different plans is available to every eligible Employee) and who elect to enroll in such plans.

To the extent permitted by the group medical plan, you may also elect coverage for your spouse and/or eligible dependents.

Explanation of these benefits and claim forms are provided in a separate summary plan description booklet made available by the insurance carrier. Should you have further questions concerning this insurance, contact Human Resources. Changes in benefits and/or the amount of premium to be paid by an Employee may occur from time to time. In the event you elect to and enroll in such plans during the time frame for which enrollment is permitted, coverage begins on the first day of the first calendar month following satisfactory completion of applicable waiting periods.

B. GROUP LIFE AND ACCIDENTAL DEATH AND DISMEMBERMENT ("AD&D") INSURANCE

Life and AD&D insurance is also available to all eligible Employees.

C. 401(K) PLAN

A 401(k) plan is a retirement savings program that allows eligible Employees to set aside a portion of their income on a pre-tax basis. Contributions and any interest earnings accumulate on a tax-deferred basis. EnCap has arranged through Fidelity

Investments to maintain a 401(k) plan for eligible Employees. To learn more about your eligibility for and details concerning the 401(k) plan, contact Human Resources.

D. FLEXIBLE SPENDING ACCOUNTS

Flexible spending accounts allow eligible Employees the opportunity to set aside each pay period (on a tax free basis) money for un-reimbursed dental and vision expenses, and/or dependent care. Contact Human Resources for more details.

E. LONG-TERM DISABILITY INSURANCE

Long-Term Disability insurance is also available to all eligible Employees.

F. WORKERS' COMPENSATION

EnCap maintains workers' compensation insurance for any injuries or illnesses suffered by Employees in the course and scope of their employment. No Employee who sustains an on-the-job injury will be subject to an adverse employment action or otherwise be discriminated against for seeking workers' compensation benefits. Contact Human Resources for more information, including information regarding procedures for required reporting of on-the-job injuries.

G. CONTINUATION OF HEALTH COVERAGE

The federal Consolidated Omnibus Budget Reconciliation Act ("COBRA") gives Employees and their qualified beneficiaries the opportunity to temporarily continue health insurance coverage under EnCap's health plan when a "qualifying event" would normally result in the loss of eligibility. Some common qualifying events are resignation, termination of employment, or death of an Employee; certain reductions in an Employee's hours or a leave of absence; an Employee's divorce or legal separation; and a dependent child no longer meeting eligibility requirements.

EnCap provides each eligible Employee with a written notice describing rights granted under COBRA when the Employee becomes eligible for coverage under EnCap's health insurance plan. The notice contains important information about the Employee's rights and obligations. Additional information regarding COBRA rights may also be found in the Plan Documents (including summary plan description) for the Company's health plan.

Employees should contact Human Resources with questions concerning COBRA.

H. VACATION

Vacation time off with pay is available to eligible Employees to provide opportunities for rest, relaxation, and personal pursuits. Full-time Employees are eligible to earn and use vacation time as described in this policy.

The amount of paid vacation time you receive each year increases with the length of your employment as shown in the following schedule:

Vacation Earning Schedule

<u>Calendar Years of Eligible Service</u>	<u>Vacation Days Each Calendar Year</u>
Zero – 3 months	0 days
30 days – end of first calendar year	Up to 10 days on prorated basis based on days worked that year
Second and third calendar years	10 days
Fourth and fifth calendar years	15 days
Sixth through 19th calendar years	20 days
20th calendar year thereafter	25 days

Once you become an eligible full time Employee, you begin to earn paid vacation time according to the above schedule. New Employees are not eligible to use vacation time until completion of their first three months of employment. During the first calendar year of employment, vacation will be calculated on a prorated basis based on days worked that year. All vacation days taken must be pre-approved by your manager.

Vacation time off is paid at your base pay rate at the time of vacation. It does not include overtime or any special forms of compensation such as incentives, commissions, bonuses, or shift differentials.

Vacation time cannot be carried over from one year to the next. Any vacation time off not used by the end of the calendar year will be forfeited.

Upon termination of employment, you will be paid for any then-existing unused vacation time that has been earned through the last day of work. Vacation is earned on a pro-rated daily basis over the calendar year. Employees may use annual vacation time before it has been earned in any calendar year.

Any vacation time off used by an Employee prior to voluntary or involuntary termination of employment in excess of accrued vacation during the year will be payable back to EnCap upon written authorization by the Employee.

Hours not actually worked for which a non-exempt Employee receives vacation pay will not be considered as hours worked in calculating eligibility for overtime pay.

Abuse of vacation is grounds for disciplinary action, up to and including termination of employment.

I. HOLIDAYS

Holiday time off is granted to all full-time Employees typically on the holidays listed below, depending on the calendar each year. Non-exempt, part-time Employees will be paid for a holiday if it falls on a regularly scheduled workday.

- New Year's Day
- Martin Luther King Day
- Presidents Day
- Good Friday
- Memorial Day (last Monday in May)
- Independence Day
- Labor Day (first Monday in September)
- Thanksgiving (fourth Thursday in November)
- Thanksgiving (fourth Friday in November)
- Christmas Eve (December 24 if a workday)
- Christmas Day (December 25 if a workday)

A holiday schedule will be posted for exact dates on an annual basis.

Holiday pay for non-exempt Employees is calculated based on your straight-time pay rate (as of the date of the holiday) times the number of hours you would otherwise have worked on that day.

If a recognized holiday falls during a paid absence (e.g., vacation, sick leave), holiday pay will be provided instead of the paid time off benefit that would otherwise have applied.

If a recognized holiday falls on Saturday, then EnCap will generally observe the holiday on the preceding Friday. If a recognized holiday falls on Sunday, then EnCap will observe the holiday on the following Monday.

Non-exempt Employees who work on a recognized holiday will receive holiday pay plus wages at one and one-half times their straight-time rate for the hours actually worked on the holiday. Holidays should not be worked unless specifically authorized in advance by your manager.

Hours not actually worked for which a non-exempt Employee receives holiday pay will not be considered as hours worked in calculating eligibility for overtime pay.

J. **SICK LEAVE**

EnCap provides paid sick leave benefits to all full-time and part-time Employees and paid interns for periods of temporary absence due to illnesses or injuries.

Eligible Employees will have sick leave benefits at the rate of eight days per year. Sick leave benefits are determined on a calendar year basis. **Employees may not carry over unused sick leave from one calendar year to the next.** New Employee sick leave for the first calendar year of employment is pro-rated according to hire date:

Month of Hire	# of Sick Days per Calendar Year
January – March	8
April – June	5
July – September	3
October – December	2

Eligible Employees may only use sick leave benefits for an absence due to their own illness or injury or that of a family member.

If you are unable to report to work due to illness or injury, you should notify your manager before the scheduled start of your workday. You also must contact your manager on each additional day of absence.

EnCap reserves the right to request a health care provider's certification in cases where an Employee is absent for four consecutive work days under this policy.

Sick leave benefits will be calculated based on your base pay rate at the time of absence and will not include any special forms of compensation, such as incentives, commissions, bonuses, or shift differentials.

Sick leave benefits are intended solely to provide income protection in the event of illness or injury, and may not be used for any other absence. **Employees will not be paid for unused sick leave benefits upon termination of employment.**

Hours not actually worked for which a non-exempt Employee receives sick leave benefits will not be considered as hours worked in calculating eligibility for overtime pay.

Abuse of sick leave is grounds for disciplinary action, up to and including termination of employment.

K. FAMILY AND MEDICAL LEAVE

Family and Medical Leave (“FML”), pursuant to the Family and Medical Leave Act (“FMLA”), allows an eligible Employee to take unpaid job-and-benefit-protected-leave from work to attend to specific family and/or medical needs.

Eligibility

To qualify for FML, you must (1) have worked for EnCap for at least 12 months; (2) have worked at least 1,250 hours during the immediately preceding 12 months; (3) be employed at a worksite where EnCap employs 50 or more Employees within a 75-mile radius; and (4) meet the leave purpose requirements outlined below.

Types of Leave Covered

An eligible Employee may take up to 12 workweeks of FML during any “rolling” 12-month period, measured backward from the date of any leave, for any of the following qualifying reasons:

- The birth of a child of the Employee, and to care for the newborn child;
- The placement with the Employee of a child for adoption or foster care and to care for the newly placed child;
- To care for the Employee’s spouse, child, or parent with a serious health condition;
- A serious health condition of the Employee that makes the Employee unable to perform the essential functions of the Employee’s job; and,
- A qualifying exigency arising out of the fact that the Employee’s spouse, child, or parent is on (or has been notified of an impending call or order to active duty) covered active duty in the Armed Forces.

Leave for the birth of a child or for the placement of a child with the Employee for adoption or foster care must be concluded by the end of the 12-month period beginning on the date of the birth or placement.

A qualifying exigency may include attending certain military events, arranging for alternative childcare, addressing certain financial and legal arrangements, attending certain counseling sessions, and attending post-deployment reintegration briefings.

An eligible Employee may take up to 26 weeks of FML during any single 12-month period to care for a spouse, child, parent, or next of kin who is a covered servicemember and who has a serious injury or illness related to active-duty service. The single 12-month period shall be measured forward from the date an Employee’s first FMLA leave to care for the covered servicemember begins. A covered servicemember is:

- a member of the Armed Forces (including a member of the National Guard or reserves) who is undergoing medical treatment, recuperation, or therapy, is otherwise in outpatient status, or is otherwise on the temporary disability retired list for a serious injury or illness; or
- a veteran who was discharged or released under conditions other than dishonorable at any time during the five-year period prior to the first date the eligible Employee takes FML to care for the covered veteran, and who is undergoing medical treatment, recuperation, or therapy for a serious injury or illness.

For the purposes of this policy, a serious health condition is an illness, injury, impairment, or physical or mental condition consisting of:

- Inpatient care or an overnight stay in a hospital, hospice, or residential medical care facility or any subsequent treatment in connection with such inpatient care; or
- Continuing treatment by a healthcare provider that either prevents the Employee from performing the functions of the Employee's job or prevents the qualified family member from participating in school or other daily activities and involves incapacity and treatment, pregnancy or prenatal care, chronic conditions, permanent or long-term conditions, conditions requiring multiple treatments, and absences attributable to incapacity that are not otherwise covered. Subject to certain conditions, the continuing treatment requirement may be met by a period of incapacity of more than 3 consecutive calendar days combined with at least 2 visits to a health care provider or one visit and a regimen of continuing treatment, or incapacity due to pregnancy, or incapacity due to a chronic condition.

Intermittent or Reduced Schedule Leave

When medically necessary, an Employee may take FML intermittently or on a reduced work schedule (reducing the usual number of working hours per workweek or workday). The Employee will be required to provide evidence (e.g., Certification of Health Care Provider) that intermittent leave is medically necessary. Leave due to qualifying exigencies may also be taken on an intermittent basis.

Intermittent leave may not be taken in increments of less than 1 hour. If an Employee takes leave on an intermittent or reduced schedule basis, only the amount of leave actually taken will be counted toward the 12-week FMLA leave allotment. If the intermittent or reduced schedule leave is unpaid, the Employee's wages or salary will be reduced by the amount of leave taken.

EnCap may temporarily transfer an Employee using intermittent FML to an alternative position with equivalent pay and benefits that better accommodates the leave schedule.

Both Spouses Employed by EnCap

Spouses who are both employed by EnCap and eligible for FMLA leave may be limited to a combined total of 12 weeks of leave during the 12-month period if leave is requested for the birth of a child and in order to care for such child; for the placement of a child with the Employee for adoption or foster care and in order to care for the newly placed child; or to care for an Employee's parent with a serious health condition. Likewise, such spouses may be limited to a combined total of 26 weeks in a single 12-month period if the leave is either for military caregiver leave; or a combination of military caregiver leave and leave for other FMLA-qualifying reasons.

Request for FML

When leave is foreseeable, an Employee must provide notice at least 30 days in advance of the commencement of leave. If this is not possible, an Employee should give notice (whether written or oral) as soon as practicable, including the reason for the leave and its anticipated timing and duration. When need for leave is not foreseeable, an Employee is expected to notify EnCap within one to two business days of learning of the need for leave, except in extraordinary circumstances. Failure to give adequate notice may be grounds for delaying FML, depending upon the particular circumstances. FML request forms are available from Human Resources. Please submit a written request, using this form, to Human Resources when requesting leave.

Certification of FML

When completing required FML forms, an Employee must provide sufficient information for EnCap to determine if the leave may qualify for FMLA protection and the anticipated timing and duration of the leave. If an Employee is requesting leave because of the Employee's own or a covered relative's serious health condition, the Employee and the relevant health care provider must supply appropriate medical certification. You may obtain Medical Certification forms from Human Resources. When you request leave, EnCap will notify you of the requirement for medical certification and when it is due (at least 15 days after you request leave). If you provide at least 30 days' notice of medical leave, you should also provide the medical certification before leave begins. Failure to provide requested medical certification in a timely manner may result in denial of FMLA-covered leave until it is provided.

EnCap will inform an Employee requesting leave whether he or she is eligible for FML. If the Employee is eligible, EnCap will inform him or her of any additional required information, as well as his or her rights and responsibilities. If the Employee is not eligible, EnCap will inform the Employee and provide a reason for the ineligibility.

EnCap will also inform the Employee if leave will be designated as FMLA-protected and the amount of leave counted against the Employee's leave entitlement.

A second medical opinion may be required by a health care provider designated by EnCap. Should the two opinions conflict, a third, final and binding, medical opinion by a health care provider agreed upon by EnCap and Employee may be required at the expense of EnCap.

Reporting While on FML and Return from FML

You may be required to provide periodic updates of your status and intent to return to work if you take a leave of absence because of your own serious health condition or to care for a family member with a serious health condition.

Upon returning to work from a leave of absence for an Employee's own serious health condition, all Employees will be required to provide certification from the Employee's health care provider that the Employee is able to resume work and will not be allowed to return to work until such certification is presented. When appropriate, EnCap may also require on-going medical certifications from an Employee on leave due to his own or a family member's serious health condition. An Employee's failure to return from leave, or failure to contact Human Resources on his/her scheduled date of return, will be considered a voluntary resignation.

Relationship to Paid Leave

An Employee must use all any accrued vacation, parental leave, or other applicable paid leave prior to taking unpaid leave. Such paid leave will run concurrently with the unpaid FML leave. The substitution of paid leave for unpaid leave does not extend the FMLA leave period.

Benefits During Leave

EnCap will maintain your group health insurance coverage at the same level and under the same circumstances as when you were actively working, while you are on leave. Any share of health premiums normally paid by you must continue to be paid by you during the FML period. If you fail to return from leave, EnCap may recover the health insurance premium it paid for you during the FML period, unless the failure to return to work is due to your serious health condition or other circumstances beyond your control.

Upon return from FML, you will receive the benefits you had prior to the start of your leave.

Restoration to Prior Position and Benefits

Upon expiration of FMLA leave, with certain limitations, Employees returning to work will be restored to the same position they held when the leave began, or to an equivalent position with equivalent employment benefits, pay and other terms and condition of employment.

Key Employees, i.e., salaried Employees among the highest paid 10% of Employees at a worksite or within 75 miles of that worksite, may not be returned to their former or an equivalent position following FMLA leave if restoration of employment will cause substantial and grievous economic injury to EnCap's operations. EnCap will notify you if you qualify as a key Employee.

No Retaliation

EnCap will not interfere with, restrain, or deny the exercise of any right provided under the FMLA, or discharge or discriminate against any person for opposing any practice made unlawful by the FMLA, or for involvement in any proceeding under or relating to the FMLA.

Interpretation and Modifications

This policy will be construed and implemented in accordance with applicable federal and state law, and Employees will be afforded all rights required by law. This policy may be modified at any time by EnCap and is not intended to create legal rights or obligation beyond those existing under the Family and Medical Leave Act of 1993. Terms used in this policy are defined in the FMLA. If you have any questions, concerns, or disputes with this policy, please contact Human Resources.

L. PARENTAL LEAVE

EnCap provides paid parental leave to eligible employees to ensure that mothers have sufficient time to recover from childbirth before returning to work and to allow parents time off to adjust to the addition of a new family member and to bond with the child.

Full-time Employees who have been employed by EnCap for one year or more may request leave to medically recover from childbirth or to care for a newborn child or a newly placed child for adoption or foster care, as set forth below:

- Following childbirth, EnCap will provide biological mothers with 16 weeks of paid leave. Employees may also initiate this leave prior to the birth of a child for pregnancy-related medical conditions.
- Following the birth of a child or the placement of a child for adoption or foster care, EnCap will provide full-time employees who are not biological mothers with two weeks of paid leave. If an Employee is the sole caregiver of the newborn or newly placed adopted or foster child, EnCap will provide the Employee with 16 weeks of paid leave. To qualify as a "sole caregiver," the Employee must demonstrate that the Employee is the only adult living in the household responsible for and routinely providing care to the child.

During the approved parental leave period, eligible Employees will be paid at their base rate at the time of leave and will not receive any special forms of compensation, such as incentives, commissions, bonuses or shift differentials.

Eligible Employees must first exhaust their accrued vacation time off prior to accessing the parental leave benefits. Parental leave runs concurrently with available Family and Medical Leave. A maximum of 16 paid weeks of leave is available under this policy.

EnCap part-time Employees are not eligible for paid parental leave.

Abuse of parental leave may result in disciplinary action, up to and including termination of employment.

M. *MILITARY LEAVE*

Military leaves of absence will be granted in accordance with applicable federal, state and local laws, including the federal Uniformed Services and Employment and Reemployment Act of 1994, as amended, and other applicable laws. Employees should direct any questions concerning military leave to the Chief Financial Officer.

N. *JURY DUTY AND SUBPOENA COMPLIANCE*

Employees are encouraged to fulfill their civic duty to appear for jury duty when summoned or to respond when subpoenaed to appear as a witness in a civil, criminal, legislative, or administrative proceeding.

A summons for jury duty ordinarily is received well in advance of the date the Employee is required to report. Therefore, the Employee should discuss the jury summons with the appropriate manager, an EnCap Partner, or the Chief Financial Officer immediately upon receipt to determine if the scheduled time is convenient. In some instances, it may be necessary for EnCap to have the Employee request a postponement or change in dates of his or her jury duty, and the Employee is expected to cooperate in seeking this change. Of course, EnCap will abide by the final decision of the appropriate judge, if the situation should arise. An Employee who receives a subpoena ordering his or her appearance as a witness likewise must inform the appropriate manager, an EnCap Partner, or the Chief Financial Officer immediately. Again, it may be necessary for EnCap to ask the Employee to request a postponement or change in dates of his or her appearance, and the Employee is expected to cooperate in seeking this change. EnCap will abide by the final decision of the appropriate authority in these situations.

Absences from work in response to a summons for jury duty or in compliance with a subpoena are excused absences. EnCap will compensate full-time non-exempt Employees who are absent because of jury duty for up to five working days per calendar year. EnCap will not deduct from the salary of exempt Employees for absences due to jury duty or compliance with subpoenas, as long as the Employee performs some work during the workweek. Such Employees may retain any jury duty allowance received from the court.

An Employee who receives a jury summons or a subpoena is expected to report for work whenever the court schedule permits or as soon as reasonably practicable upon release from jury duty or subpoena compliance.

EnCap will continue to provide health insurance benefits for the full term of the jury/witness duty absence. Accrual for benefits calculations, such as vacation, sick leave, or holiday benefits, will not be affected during jury/witness duty leave.

Paid time off for the jury duty or subpoena compliance is not considered hours worked for purposes of determining overtime for non-exempt Employees.

Employees will not be subjected to retaliation or adverse employment actions because they participated in jury duty or complied with a subpoena.

Abuse of EnCap's policy on jury duty or subpoena compliance is grounds for disciplinary action, up to and including termination of employment.

O. *VOTING LEAVE*

EnCap encourages Employees to fulfill their civic responsibilities by voting before or after working hours. But if an election occurs on a day in which the polls are not open for voting for two consecutive hours outside of an Employee's scheduled working hours, EnCap will grant up to two hours of paid time off in which to vote. An Employee should provide his or her manager with advance notice of the need for time off to vote.

Paid time off to vote is not considered hours worked for purposes of determining eligibility for overtime pay for non-exempt Employees.

P. *PERSONAL LEAVE*

In General

Although not routinely permitted, a personal leave of absence without pay may be granted to an Employee under certain circumstances, as determined by EnCap in its sole discretion. Because each Employee carries a full workload and because of the inconvenience and cost to EnCap and the disruptive effect on its staffing needs, as well as the wide variety of situations in which a personal leave could be requested, it is extremely difficult to accommodate requests for personal leaves of absence. EnCap will decide each request for a personal leave of absence, the terms and duration of a personal leave of absence, and the conditions of reinstatement, on a case-by-case basis and consider factors such as length of service, reason for the leave, requested duration of the leave, and job responsibilities.

Employees are not eligible for a personal leave of absence until they have completed their 90-day initial review periods and exhausted all accrued unused vacation or other applicable paid leave.

Employees must exhaust all other applicable leave for which they qualify (such as vacation, sick leave, parental leave and Family and Medical Leave), before a personal leave of absence, if granted, can be taken.

Procedure

An eligible Employee who desires a personal leave of absence must complete and submit to Human Resources a leave of absence request form which must state the reasons for and desired duration of the leave, and affirm the Employee's intention to return to work following the leave. Whenever possible, an Employee should submit the leave of absence request form at least 30 days before the desired start date of the personal leave.

Duration of Leave

A personal leave ordinarily may not exceed 180 consecutive calendar days in any one-year period. To determine the one-year period during which personal leaves are available, EnCap uses a rolling one-year period measured backward from the date the Employee last received a personal leave of absence.

Benefits

Personal leaves of absence are without pay. Subject to the terms, conditions, and limitations of the applicable plans, Employees are responsible for paying their regular group insurance premiums if they wish coverage to continue during a personal leave of absence. When the Employee returns from personal leave, EnCap will again provide benefits according to the applicable policies and plans. An Employee on an unpaid personal leave of absence will not accrue seniority or other employment benefits, such as vacation.

Other Employment

An Employee who accepts or continues other employment while on a personal leave without the prior written approval of Human Resources, will be considered to have voluntarily resigned from employment. Employees should carefully explore such matters with the Chief Financial Officer before undertaking other work while on a personal leave of absence.

Medical Certifications

Subject to applicable law, before commencing a personal leave of absence taken because of the medical condition of an Employee or an Employee's family member, the Employee must submit to Human Resources a certification completed by a health care provider. An Employee must submit a recertification to support a continuing personal leave for medical reasons every 30 days. An Employee returning from a personal leave

taken because of the Employee's own medical condition must submit a medical certification from a health care provider that the Employee is fit to return to work and can perform the essential functions of the job with or without reasonable accommodation. All certifications must be obtained at the Employee's own expense. EnCap reserves the right at its sole discretion to waive or modify these certification requirements.

Return to Work

EnCap does not guarantee that it will hold open the position of any Employee who is on a personal leave of absence. Nor does EnCap guarantee that following a personal leave an Employee will be restored to his or her former position or to a position with the same pay, benefits, or other terms and conditions of employment as the Employee's former position. EnCap will endeavor to find an available position for which the company, in its sole discretion, determines the Employee is the best qualified candidate, but if no such position is available, the Employee's employment will be terminated. Employees who fail to return to work at the end of a personal leave of absence will be deemed to have voluntarily resigned employment.

Pregnancy

Unless otherwise required by law, women requesting a personal leave because of pregnancy, childbirth, or related medical conditions shall be entitled to leave on the same basis as Employees requesting leave for non-pregnancy related reasons.

Discipline

An Employee's abuse of this policy, failure to comply with the conditions of a personal leave, or failure to provide required certifications may result in denial or cancellation of leave or appropriate disciplinary action, up to and including termination of employment.

Q. *MAXIMUM AVAILABLE LEAVE*

Unless otherwise required by law, employment will automatically terminate after an Employee has been absent from work and/or unable to work for any reason or reasons for more than 180 consecutive calendar days. This policy applies to all Employees, regardless of the reason(s) for the absence or inability to work. Unless otherwise required by law, no leave of absence may exceed 180 consecutive calendar days. If a qualified individual with a disability requests a reasonable accommodation of leave longer than 180 consecutive calendar days due to a physical or mental impairment that substantially limits a major life activity, a decision regarding the length of that Employee's leave will be made on a case-by-case basis in accordance with applicable law.

V. SEPARATION FROM EMPLOYMENT

A. INVOLUNTARY TERMINATION

As an at-will employer, EnCap reserves the right to terminate your employment at any time, with or without cause or notice.

B. VOLUNTARY RESIGNATION

Employees also have the right to terminate their employment at any time, with or without cause or notice. Any Employee who wishes to voluntarily terminate his or her employment is expected to present a written resignation at least two weeks in advance. If EnCap elects to reduce the notice period, EnCap ordinarily will substitute pay in lieu of notice for the portion of time that the Employee is excused from work.

C. RETURN OF PROPERTY

On the Employee's last day of employment, regardless of whether the employment separation is voluntary or involuntary, the Employee is expected to return all of EnCap's property, including but not limited to this Employee Handbook, any access keys and cards, all documents, files and other materials (including all electronically stored information), ID badges, telephone or credit cards, cell phones, computers, software, PDAs, and any other materials provided by or relating to EnCap (other than personnel information that relates solely to the Employee) obtained or created as a result of employment.

D. EXIT INTERVIEW

Prior to your voluntary or involuntary departure, EnCap may ask you to participate in a voluntary exit interview.

E. FORWARDING ADDRESS

At the time of voluntary or involuntary separation from employment, each Employee also should furnish EnCap with his or her forwarding address so that W-2 forms and other mail may be sent to the Employee.

EXHIBIT A

ENCAP INVESTMENTS L.P. HEALTH MANAGEMENT PROGRAM

Effective April 1, 2012, EnCap implemented a Health Management Program for Qualifying Employees to encourage active participation in activities that enhance Employees' overall health and raises awareness for key health issues. The goal of the program is to affect health outcomes by incentivizing major health changes. Under the program, EnCap will reimburse out-of-pocket cost associated with Qualifying Activities to Qualifying Employees. Examples of Qualifying Activities include:

- Gym memberships
- Exercise classes
- Personal trainers
- Health assessments
- Biometric screenings
- Preventive care programs (excluding personal massages)
- Dietary assessments and programs

Reimbursement to Qualifying Employees for such Qualifying Activities will be equal to 100% of actual cost incurred up to \$1,200 per year.

Qualifying Employees are defined as Employees with a total compensation (prior year salary plus bonus) of \$500,000 or less and employed with EnCap for a period exceeding three months. Employees with total compensations exceeding \$500,000 receive no benefit under the program.

Reimbursement must be supported by a receipt and included on the Employee's expense report. For gym memberships, a bank or credit card statement showing the payment is required. Any unused benefit will not carryover to the following year. Renewal of this program will be based upon the discretion of the EnCap Managing Partners.

If you have any questions regarding this program, please contact Human Resources.

EXHIBIT B

ENCAP INVESTMENTS L.P. CHARITABLE CONTRIBUTION AND SPONSORSHIP PROGRAM

Overview

Effective January 1, 2015, EnCap implemented a Charitable Contribution and Sponsorship Program (the “Program”) for Qualifying Employees to encourage and support our Employees to give back to our communities. The goals of the Program are to enrich the lives of the people within our communities and to foster a culture of giving within EnCap.

Our Guidelines

- Qualifying Employees include all full-time Employees with a total compensation (prior year salary plus bonus) of \$750,000 or less and employed with EnCap for a period exceeding three months. Employees with total compensation exceeding \$750,000 receive no benefit under the program.
- Eligible organizations include most all 501(c)(3) organizations focused on enriching the health, education, or welfare of the community. Exclusions will apply for churches, school athletic programs, political parties, candidates or lobbying activities and other organizations at the discretion of the Charitable Contribution Committee (the “Committee”).
- EnCap will 100% match only approved cash contributions and sponsorships of a minimum of \$250 to a maximum of \$25,000 to any single organization per Employee per annum with a maximum match to multiple organizations of \$50,000 per Employee per annum.

Request Process

- A Charitable Contribution and Sponsorship Form (“CCS Form”) must be completed and returned to the assistant of the Chief Financial Officer. The Employee’s check (or a copy of the Employee’s cancelled check accompanied by written acknowledgement from the organization), related contribution materials and documentation of the organizations 501 (c)(3) status should accompany the CCS Form.
- The CCS Form should be submitted by the 15th of each month. If approved by the Committee, EnCap will send its check along with the Employees’ check and supporting contribution/sponsorship form, if applicable, directly to the organization. If not approved by the Committee, EnCap will return the CCS Form and attachments to the Employee prior to the end of that month. Please note that approval for matching is based upon the sole discretion of the Committee.

EnCap may amend or terminate the Program at any time without notice. The interpretations, application, and administration of the Program will be determined by the Committee, and its decisions are final.

APPENDIX 1
CHARITABLE CONTRIBUTIONS AND SPONSORSHIP REQUEST FORM

Employee Name: _____

Name of Organization/Event: _____

Date of Event (if applicable): _____

Contact Information of Organization

Contact Person (if applicable): _____

Address: _____

Phone Numbers(s): _____

Website (if applicable): _____

Employee cash contribution amount: \$_____

Amount to be matched by EnCap Investments L.P. \$_____

Brief description of the charity, program or sponsorship for which matching is requested:

Please send this form along with your check (or your cancelled check along with acknowledgement of the contribution from the organization) and related contribution materials/sponsorship form to:

EnCap Investments L.P.
Attn: Human Resources
9651 Katy Freeway
Suite 600
Houston, TX 77024

EXHIBIT C

**ENCAP INVESTMENTS L.P.
CORPORATE TRAVEL AND EXPENSE REIMBURSEMENT
POLICY**

I. INTRODUCTION

A. OVERVIEW

It is the policy of EnCap Investments L.P. (“EnCap”) to reimburse staff for reasonable and necessary expenses incurred in connection with approved travel on behalf of the company. Travel and related expenses cannot be charged to a portfolio company or a fund, except for such expenses incurred as allowed within the definition of Organization Costs in the related fund’s limited partnership agreement, and only during the active fund-raising period for that fund.

EnCap strongly encourages use of travel discounts when making travel arrangements. Travelers seeking reimbursement should incur the lowest reasonable travel expenses and exercise care to avoid impropriety or the appearance of impropriety.

Reimbursement is allowed only when reimbursement has not been, and will not be, received from other sources. If a circumstance arises that is not specifically covered in this travel policy, then the most conservative course of action should be taken.

Business travel policies are aligned with company reimbursement rules. All business-related travel reimbursed by EnCap must comply with company travel policies listed below.

B. VACATION IN CONJUNCTION WITH BUSINESS TRAVEL

In cases in which vacation time is added to a business trip, any cost variance in airfare, car rental or lodging must be clearly noted on expense reports. EnCap will not prepay any personal expenses with the intention of being “repaid” at a later time, nor will any personal expenses be reimbursed.

II. TRAVEL EXPENSES/PROCEDURES

A. AIRFARE

Travelers are expected to obtain the lowest available airfare that reasonably meets business travel needs.

Travelers are encouraged to book flights at least 30 days in advance to avoid premium airfare pricing.

Coach class or economy tickets must be purchased for domestic or international flights totaling less than five consecutive hours excluding layovers. A higher-priced coach ticket cannot be purchased in order to receive subsequent upgrade in seating.

A less-than-first-class ticket (i.e., business class) may be purchased by any EnCap employee for domestic or international flights exceeding five consecutive hours excluding layovers.

First class travel is only reimbursable to Employees who are Managing Director level and above. Any other Employee who chooses to travel first class will only be reimbursed the amount of a coach class or economy ticket (documentation to be provided by Employee for the difference).

Exceptions for first class travel can be made only with Managing Partner approval and is on a case-by-case basis.

Employees are encouraged to keep travel changes to a minimum to avoid excessive airline change fees.

Private air travel is reserved for Managing Partners only. In no event can private air travel be charged to a fund.

Airfare should be reimbursed at the time of purchase with a receipt from the travel agent or airline. Should there be cancellations or changes, it is the responsibility of the Employee and assistant to keep track of the charges to make sure the Employee or EnCap is reimbursed accordingly. Credit card statements are not sufficient documentation for airfare. Receipts must be provided.

B. *LODGING*

The cost of overnight lodging will be reimbursed to the traveler if the authorized travel is 75 miles or more from the traveler's home or primary worksite.

Exceptions to this restriction may be approved in writing by a Managing Partner.

EnCap will reimburse lodging expenses at reasonable, single occupancy or standard business room rates. When the hotel is the conference or convention site, reimbursement will be limited to the conference rate.

Room service and other lodging expenses will be reimbursed as long as they are fair and reasonable. These expenses are subject to review by a Managing Partner.

C. *TRANSPORTATION/CAR RENTAL*

Travelers are expected to obtain public transportation i.e., taxi, Uber, subway, for business travel.

Private car service can be arranged if there are two or more Employees traveling together or for Employees who are Managing Director level and above.

Exceptions for private car service can be made only with Managing Partner approval and is on a case-by-case basis.

Reimbursement for a commercial rental vehicle as a primary mode of transportation is authorized only if the rental vehicle is more economical than any other type of public transportation, or if the destination is not otherwise accessible. Vehicle rental at a destination city is reimbursable. Original receipts are required.

EnCap authorizes reimbursement for the most economic vehicle available. In certain circumstances, larger vehicles may be rented, with supervisory approval. The rental agreement must clearly show the date and the points of departure/arrival, as well as the total cost. Drivers must adhere to the rental requirements, and restrictions must be followed. Original receipts are required.

When vehicle rentals are necessary, EnCap encourages travelers to purchase collision damage waiver (CDW) and loss damage waiver (LDW) coverage. EnCap will reimburse the cost of CDW and LDW coverage; all other insurance reimbursements will be denied.

Drivers should be aware of the extent of a coverage (if any) provided by his or her automobile insurance company for travel that is business or not personal in nature.

Parking fees, tolls and other incidental costs associated with the vehicle use are not covered by the rental agreement.

Travelers are strongly encouraged to fill the gas tank before returning the vehicle to the rental agency to avoid service fees and more expensive fuel rates.

D. *PARKING*

Original receipts are required for parking fees (including airport parking) The lodging bill can be used as a receipt when charges are included as part of the overnight stay.

E. *VISA, PASSPORT FEES AND IMMUNIZATIONS*

If these items are required for international travel, their reimbursement is left to the discretion of the Managing Partners. If approved by the designated authority, original itemized receipts are required.

III. NON-REIMBURSABLE TRAVEL EXPENSES

The following items that may be associated with business travel will not be reimbursed by EnCap:

- Airline club memberships
- Child-care, babysitting, house-sitting, or pet-sitting/kennel charges
- Evening or formal wear expenses
- Haircuts and personal grooming
- Laundry and dry cleaning
- Passports, vaccinations, and visas when not required as a specific and necessary condition of the travel assignment
- Personal entertainment expenses, including in-flight movies, headsets, health club facilities, hotel pay-per-view movies, in-theater movies, social activities, and related incidental costs
- Travel accident insurance premiums or purchase of additional travel insurance
- Other expenses not directly related to the business travel

IV. TRAVEL FOR NON-EMPLOYEES

Additional costs for travel, lodging, meal or other travel expenses for spouses or other family members will not be reimbursed unless the individual has a bona fide company purpose for engaging in the travel or attending the event. Such travel is generally limited to senior management and should occur infrequently.

V. ADDITIONAL REIMBURSABLE EXPENSES

A. *CELL PHONE REIMBURSEMENT*

Cell phone reimbursement is an \$80 stipend that is issued to each Employee monthly. Monthly receipts/bills are not required to be submitted. Human Resources will keep one bill on file as required documentation. Contracts do not have to be in the Employee's name, but require that the Employee number be listed. Any reimbursement over \$80 will require a receipt and subject to Partner approval.

B. HEALTH MANAGEMENT PROGRAM

Credit card statements are acceptable only if a copy of the contract is on file with the monthly membership fee documented. Otherwise, detailed receipts are mandatory.

C. REQUIRED DOCUMENTATION

For all expenses, the vendor, business purpose, attendees and amount must be listed.

The following is required to comply with the IRS:

- For expenses greater than \$75.00, the supporting documentation must include an itemized receipt with details each item purchased. If the expense is a meal that includes a tip, you must also include the credit card slip which shows the amount of the tip.
- If the expense is less than \$75.00, itemized receipts are not required but are encouraged.
- Lodging bills must be supported with an itemized bill (i.e., the hotel portfolio). If there is a meal or any other non-lodging item included in the detail of the lodging bill, please make sure to split the charges when classifying the expense in Expensify.
- For a cash tip incurred in the course of business (e.g., valet), an email stating the vendor, business purpose, attendees and amount can be used for documentation.